

25STCV00591 25STCV00591

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-07-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C224%2C07%2F16%2F2026

Source SHA-256: 623c20c64c7076791f7a79edf17344142d979511b5286d7216b1152df7704dbb

Case Number: 25STCV00591 Hearing Date: July 16, 2026 Dept: 224

Topanga Beach Holdings, LLC v. Lakeview Skilled Nursing Facility, LLC

TENTATIVE RULING

Plaintiff's Motion for Relief from Waiver of Jury Trial is GRANTED.

ANALYSIS

Introduction

On January 9, 2025, Plaintiff filed the Complaint in this action.

On January 29, 2026, Plaintiff filed the First Amended Complaint.

On August 29, 2025, the initial Case Management Conference occurred in this

action. The Court set trial for June 14, 2027, as a non-jury trial on the stated ground that jury fees had not been timely posted by any party.

On September 12, 2025, the Court issued a nunc pro tunc order correcting its August 29, 2025 minute order, which memorialized that "Jury Fees are not posted by any party in compliance with C.C.P. Section 631," and confirmed the June 14, 2027 trial as a non-jury trial. (Hill Decl. ¶ 4, Ex. B.)

On June 22, 2026, Plaintiff filed the instant Motion.

No opposition has been filed.

Legal Standard

A party must pay jury fees no later than 365 calendar days after filing of the initial complaint. (CCP § 631, subds. (b) and (c).) The failure to post jury fees constitutes a waiver of that right. (CCP § 631(f)(5)&(6).)

California Code of Civil Procedure section 631, subdivision (g) provides courts with discretion to allow a jury trial despite there being a waiver of trial by jury. “A trial court abuses its discretion as a matter of law when relief has been denied where there has been no prejudice to the other party or to the court from an inadvertent waiver.” (Tesoro del Valle Master Homeowners Assn. v. Griffin (2011) 200 Cal.App.4th 619, 638.) Policy favors the court using its discretion to proceed with a jury trial. (Bishop v. Anderson (1980) 101 Cal.App.3d 821, 823.)

“Where the right to jury is threatened, the crucial focus is whether any prejudice will be suffered by any party or the court if a motion for relief from waiver is granted. [Citations.] A trial court abuses its discretion as a matter of law when ‘...relief has been denied where there has been no prejudice to the other party or to the court from an inadvertent waiver. [Citations.]’” (Wharton v. Superior Court (1991) 231 Cal.App.3d 100, 104.) “The mere fact that trial will be by jury is not prejudice per se.” (Johnson-Stovall v. Superior Court (1993) 17 Cal.App.4th 808, 811 [prejudice not shown by need to prepare motions in limine, enlarged exhibits, and jury instructions unless inadequate time also shown].) Rather, the prejudice that must be shown is “prejudice from the granting of relief from waiver not prejudice from the jury trial.” (Winston v. Superior Court (1987) 196 Cal.App.3d 600, 602, 603 [fact that it takes longer to try a jury case is not prejudice from granting relief from waiver].)

Discussion

Although captioned as a “Motion for Order Modifying Case Management Order,” the motion is in substance a motion for relief from waiver of jury trial under Code of Civil Procedure section 631, subdivision (g), and the Court treats it as such.

Plaintiff moves the Court for relief from waiver of jury trial pursuant to Code of Civil Procedure section 631, subdivision (g).

The Court’s September 12, 2025 nunc pro tunc order found that “Jury Fees are not posted by any party in compliance with C.C.P. Section 631” and set the matter for a non-jury trial. (Hill Decl. ¶ 4, Exh. B.)

As a threshold matter, Plaintiff contends there was no waiver at all. Section 631, subdivision (c) provides that jury fees are “due on or before the date scheduled for the initial case management conference in the action.” (CCP § 631(c).) The record reflects that the initial Case Management Conference was held on August 29, 2025, and that Plaintiff posted its \$150 nonrefundable advance jury fee that same day, with the Court confirming receipt at 4:27 p.m. (Hill Decl. ¶ 3, Exh. A.) Because the deadline to file fees is the date scheduled for the initial Case Management Conference, and Plaintiff tendered payment on that date, Plaintiff’s position that its fees were timely is well taken.

No prejudice will result from granting relief. Trial is set for June 14, 2027 – well over a year from the filing and hearing of this Motion – leaving the parties ample time to prepare for a jury trial and eliminating any possibility of unfair surprise. (Hill Decl. ¶ 5.) The mere fact that trial will be by jury is not prejudice per se. (Johnson-Stovall, supra, 17 Cal.App.4th at p. 811.) Rather, the prejudice that must be shown is “prejudice from the granting of relief from waiver not prejudice from the jury trial.” (Winston, supra, 196 Cal.App.3d at pp. 602-603.) The Motion is unopposed, and no party has identified any prejudice arising from proceeding to a jury trial. Given the strong policy favoring resolution of doubts in favor of preserving the constitutional right to a jury trial (Bishop, supra, 101 Cal.App.3d at p. 823), relief is warranted.

Accordingly, Plaintiff’s Motion for Relief from Waiver of Jury Trial is GRANTED. The trial in this matter, currently set for June 14, 2027, is designated as a jury trial.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.